

STATE OF NEW YORK

5296--A

2025-2026 Regular Sessions

IN SENATE

February 20, 2025

Introduced by Sens. SEPULVEDA, HARCKHAM, LANZA, PALUMBO, C. RYAN, SKOUF-IS -- read twice and ordered printed, and when printed to be committed to the Committee on Mental Health -- recommitted to the Committee on Mental Health in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to establishing Nicole's law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "Nicole's law".
2 § 2. The mental hygiene law is amended by adding a new section 9.61 to
3 read as follows:

4 § 9.61 Patients with self-inflicted, life-threatening injuries.

5 1. For the purposes of this section the following terms shall have the
6 following meanings:

7 (a) "self-inflicted, life-threatening injuries" shall include suicide
8 attempts, drug overdoses, and other self-harm injuries including but not
9 limited to cutting oneself.

10 (b) "assisted outpatient services" shall mean categories of outpatient
11 services including, but not limited to, case management services or
12 assertive community treatment team services to provide care coordi-
13 nation, and may also include any of the following categories of
14 services: medication; periodic blood tests or urinalysis to determine
15 compliance with prescribed medications; individual or group therapy; day
16 or partial day programming activities; educational and vocational train-
17 ing or activities; alcohol or substance abuse treatment and counseling
18 and periodic tests for the presence of alcohol or illegal drugs for
19 persons with a history of alcohol or substance abuse; supervision of
20 living arrangements; and any other services within a local services plan
21 developed pursuant to article forty-one of this chapter, prescribed to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 treat the person's mental illness and to assist the person in living and
2 functioning in the community, or to attempt to prevent a relapse or
3 deterioration that may reasonably be predicted to result in suicide or
4 the need for hospitalization.

5 (c) "assisted outpatient services provider" shall mean any organiza-
6 tion which provides assisted outpatient services.

7 2. All hospitals operating in this state shall, with regard to intake
8 practices, ensure the following when admitting patients with self-in-
9 fllicted, life-threatening injuries:

10 (a) examine each such patient's medical history to determine whether
11 such patient has had any previous incidents of self-inflicted, life-
12 threatening injuries; and

13 (b) reach out to any known family or caretaker of such patient for
14 information about any previous instances of self-inflicted, life-threat-
15 ening injuries.

16 3. Where a patient admitted with self-inflicted, life-threatening
17 injuries is identified as having previous instances of self-inflicted,
18 life-threatening injuries, the hospital shall:

19 (a) obtain such patient's previous hospital records to verify such
20 previous instances of self-inflicted, life-threatening injuries;

21 (b) examine such patient's previous hospital records to determine
22 which treatments were previously used in order to avoid repeating prac-
23 tices which failed such patient and led to repeated episodes of self-in-
24 fllicted, life-threatening injuries;

25 (c) increase the minimum inpatient stay by an amount which shall be
26 directed by the commissioner of health by rule and/or regulation for
27 each previous instance of self-inflicted, life-threatening injuries; and

28 (d) make reasonable attempts to contact such patient's family or care-
29 taker in order to receive insights on such patient's mental health
30 history, and any other information which may be useful in such patient's
31 treatment.

32 4. Where a patient is being discharged after having been admitted with
33 self-inflicted, life-threatening injuries, the hospital shall:

34 (a) provide such patient's family or caretaker with notice of such
35 patient's discharge at least forty-eight hours prior to such discharge;

36 (b) ensure that hospital staff conduct a meeting with such patient,
37 which may include such patient's family or caretaker, to inform such
38 patient on what is needed to recover and how to best manage their mental
39 health;

40 (c) inform such patient of any assisted outpatient services providers
41 that could be helpful in such patient's recovery; and

42 (d) conduct a follow-up post-discharge within a time frame which shall
43 be established by the commissioner.

44 5. Where a patient is referred to an assisted outpatient services
45 provider by a hospital pursuant to paragraph (c) of subdivision four of
46 this section, such assisted outpatient services provider shall ensure
47 that such patient receives priority access to its assisted outpatient
48 services.

49 6. The operator of any clinical trial, as defined in section forty-
50 nine hundred of the public health law, which dismisses an individual
51 from consideration of participation because such individual indicates
52 that they have made a suicide attempt or have been suicidal, shall
53 provide such individual with the suicide crisis line, 988, and whenever
54 possible the contact information of a local assisted outpatient services
55 provider. Such clinical trial operator shall also provide a positive
56 message to such individual such as, "If you need help, I encourage you

1 to seek that help, most importantly it will help you feel better and
2 hopefully you will be able to participate in the future."
3 § 3. This act shall take effect one year after it shall have become a
4 law. Effective immediately, the addition, amendment and/or repeal of any
5 rule or regulation necessary for the implementation of this act on its
6 effective date are authorized to be made and completed on or before such
7 effective date.